CBP Memo

Intro

United States Border Patrol (USBP) releases apprehension and encounter data in separate sheets. While general encounters include all types of interactions at the border, Title 8 inadmissibles are recorded under the Office of Field Operations (OFO) rather than the USBP. Therefore, the USBP encounters datasets include only Title 8 apprehensions and Title 42 expulsions. On the other hand, USBP apprehensions data covers Title 8 apprehensions only.

Because intended difference between the USBP encounters datasets and the USBP apprehensions datasets is the pandemic-era Title 42 expulsions in the encounters dataset, we aim to consolidate encounters and apprehensions into one, comprehensive dataset that can be filtered depending on `title_of_authority`.

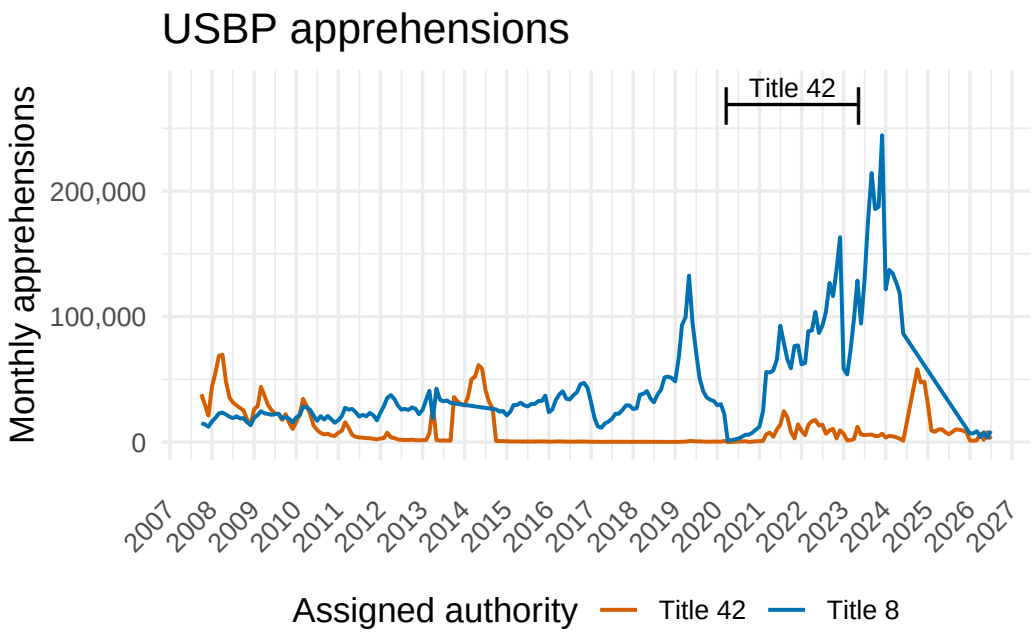
- Simple logic:
  - If `statute_charge` populated -> `title_of_authority` = Title 8
  - If `statute_charge` is missing -> `title_of_authority` = Title 42

Unique Value Exploration

To consolidate these apprehensions and encounters datasets, we attempt to use the `statute_charge` field to indicate whether an encounter is a Title 8 apprehension or Title 42 expulsion. First, we explore the unique values in this field. *To be filled in after law student report?

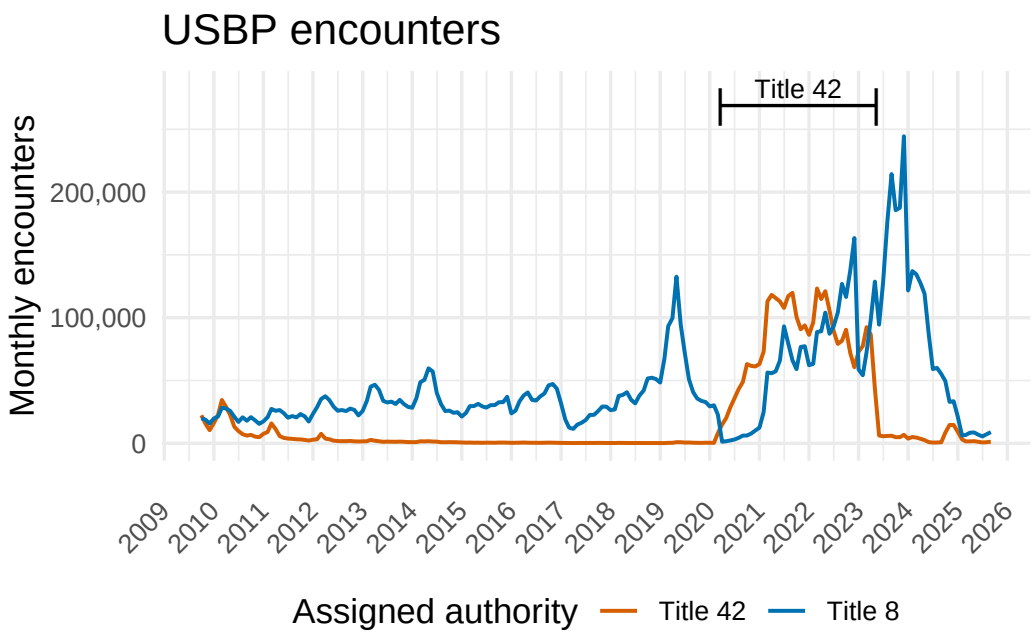
Exploration

USBP Apprehension Counts Over Time



- I applied the same classification rule that labeled rows with any value in `statute_charge` as Title 8, NA `statute_charge` as Title 42, and all else as NA to `apprehensions_latest.parquet`.
- These results lead me to think that `statute_charge` may not be a reliable indication of title of authority because that logic applied here implies that Title 42 exists in apprehensions, which we know not to be true.
- Note `statute_charge` is largely or entirely missing in some source datasets for apprehensions.

USBP Encounter Apprehension Counts Over Time



- The trend for assigned `title_of_authority` during the Title 42 period is promising.

Title 8 Encounter and Apprehension Comparison

- I counted apprehensions and Title 8 encounters within the comparable period (largest period of coverage shared by both datasets) and the Title 42 period.
- In the comparable period, the apprehensions dataset counts 9540874 apprehensions, while the encounters dataset counts 8945599 apprehensions. Assuming the apprehensions dataset is accurate, the logic under-counts apprehensions by 595275.
- In the Title 42 period, the apprehensions dataset counts 2608509 apprehensions, while the encounters dataset counts only 2352632 apprehensions. Assuming the apprehensions dataset is accurate during the Title 42 period, the logic under-counts apprehensions by 255877.

Title 42 CBP Dashboard Count Comparison

```
# A tibble: 39 x 5
   month      official_title42 assigned_title42 difference pct_difference
   <date>                <dbl>            <int>      <dbl>          <dbl>
 1 2020-03-01             7094             7181         87           1.23
```

2	2020-04-01	15018	14966	-52	-0.346
3	2020-05-01	20084	20067	-17	-0.0846
4	2020-06-01	28534	28731	197	0.690
5	2020-07-01	35444	35782	338	0.954
6	2020-08-01	42808	43193	385	0.899
7	2020-09-01	48389	48874	485	1.00
8	2020-10-01	63018	63049	31	0.0492
9	2020-11-01	61354	61635	281	0.458
10	2020-12-01	60620	61168	548	0.904
11	2021-01-01	62545	63052	507	0.811
12	2021-02-01	72335	72944	609	0.842
13	2021-03-01	107278	113082	5804	5.41
14	2021-04-01	110869	118157	7288	6.57
15	2021-05-01	111542	115622	4080	3.66
16	2021-06-01	103096	112937	9841	9.55
17	2021-07-01	94264	107733	13469	14.3
18	2021-08-01	93158	117230	24072	25.8
19	2021-09-01	100616	119793	19177	19.1
20	2021-10-01	92741	100604	7863	8.48
21	2021-11-01	87913	90735	2822	3.21
22	2021-12-01	79873	93880	14007	17.5
23	2022-01-01	77541	86354	8813	11.4
24	2022-02-01	90934	96277	5343	5.88
25	2022-03-01	109702	123271	13569	12.4
26	2022-04-01	98362	114836	16474	16.7
27	2022-05-01	103624	121077	17453	16.8
28	2022-06-01	92814	105820	13006	14.0
29	2022-07-01	75800	89485	13685	18.1
30	2022-08-01	72711	79111	6400	8.80
31	2022-09-01	72494	81621	9127	12.6
32	2022-10-01	80097	90414	10317	12.9
33	2022-11-01	69101	71816	2715	3.93
34	2022-12-01	51385	60600	9215	17.9
35	2023-01-01	66538	72951	6413	9.64
36	2023-02-01	76209	77376	1167	1.53
37	2023-03-01	91160	92468	1308	1.43
38	2023-04-01	84203	86496	2293	2.72
39	2023-05-01	31585	38342	6757	21.4

- Percent differences seem negligible at first but generally grow by month throughout the Title 42 period.

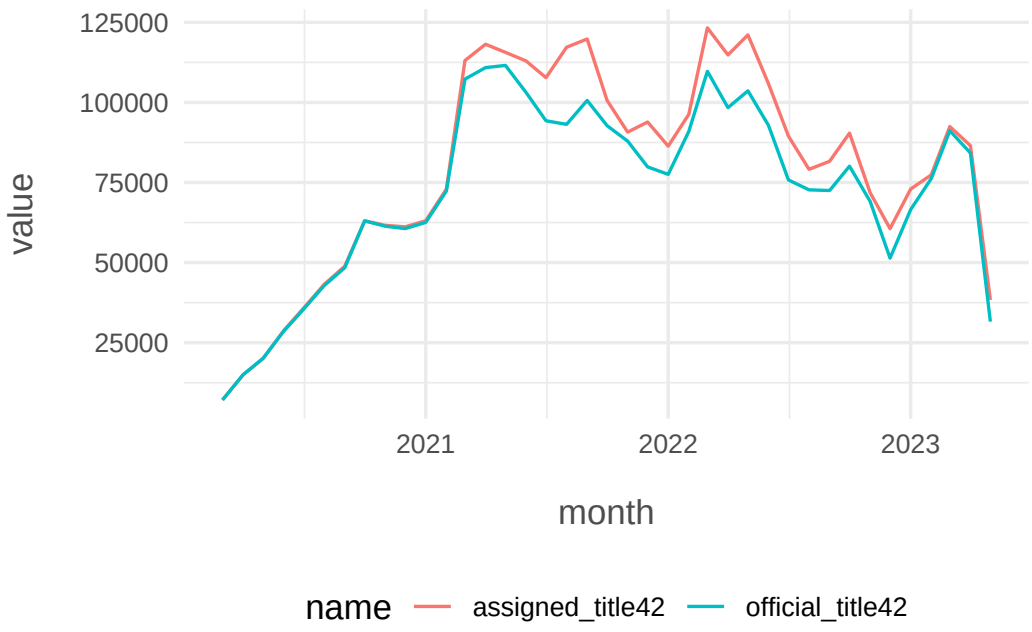


Figure 1: Totals

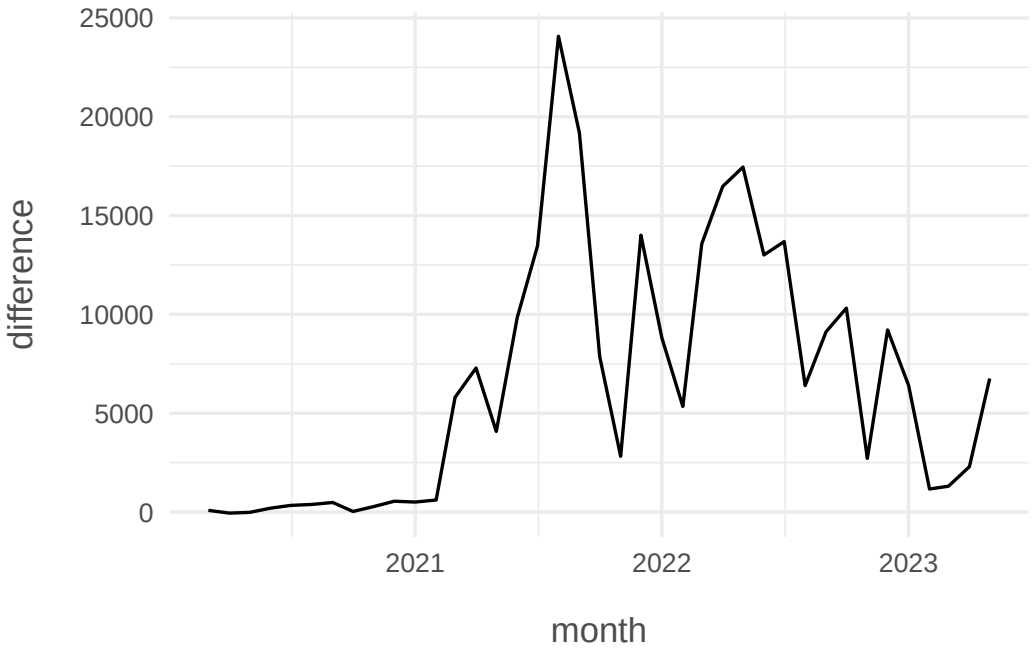


Figure 2: Difference

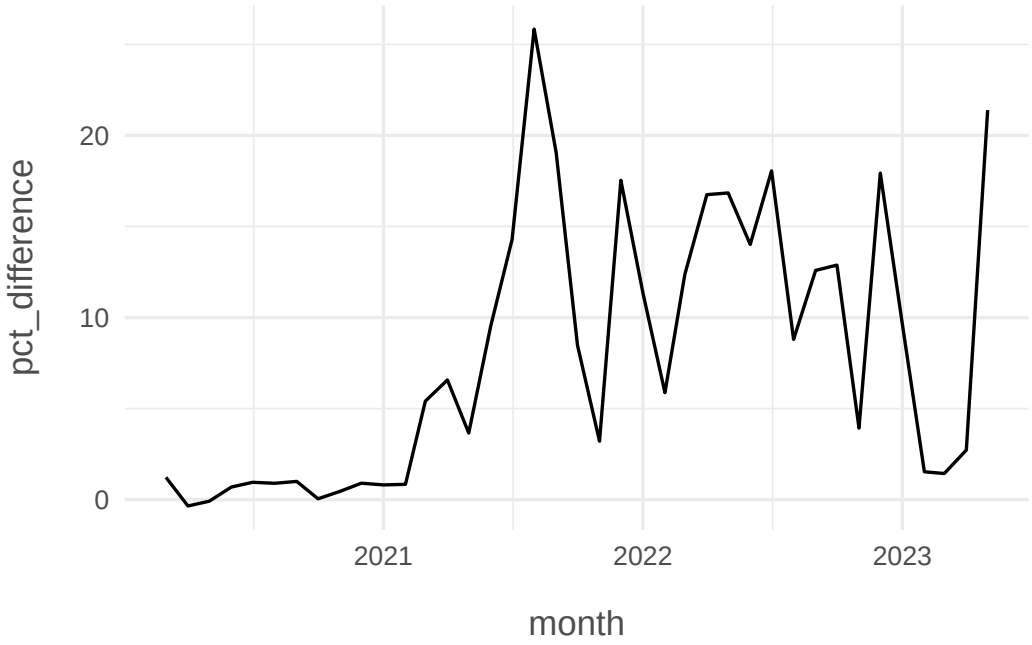


Figure 3: % Difference

CBP-reported Title 42 encounters versus assigned title of authority

Next steps for analysis

- Does raw difference of encounters - apprehensions data align with CBP dashboard counts of Title 42 expulsions?
- Can records be matched across datasets? Shared fields: apprehension_datetime, entry_date, final_bookout_date, arrest_sector, arrest_method, age, gender, citizenship, marital_status, number_of_children_and_nationality, fmua_indication, unaccompanied_child_indicator, entry_status, credible_fear_indicator, cds_program, prosecution_indicator, statute_charge, charge_code, disposition, removal_type, source_file, source_sheet, encounter_datetime, most_recent_encounter_date, earliest_encounter_date, number_of_previous_encounters, final_bookout_datetime, border, arrest_state, arrest_at_checkpoint_indicator, adult_or_juvenile, residence_city, residence_country, subject_group_classification, time_in_us, ces_indicator, mpp_indicator, transfer_to_group, drugs_seized_indicator, referred_for_prosecution_under_8usc1325_or_8usc1326